

TENDER DOCUMENT — RFT 5540-DCB-0012

DESIGN-BUILD CONTRACT — COMMERCIAL DISTRIBUTION CENTER

1. PROJECT OVERVIEW

Project Name	Northgate Distribution Center
Location	Northgate Logistics Park
Project Value	USD 9.8 Million
Duration	15 months from Notice to Proceed
Client	Northgate Logistics Holdings

2. FINANCIAL REQUIREMENTS

- Contract Value: USD 9,800,000 (fixed price lump sum)
- Payment Terms: Monthly invoicing based on certified work completion
- Milestone payments: 10% mobilization / 50% structural completion (single combined milestone) / 40% final handover
- Retention: 10% holdback from each invoice, released 9 months after completion
- Performance Bond: 10% of contract value, within 10 days of award
- Payment Terms: Net 45 days from invoice date

3. TECHNICAL SCOPE

3.1 Scope Includes

- Design development and detailed engineering
- Tilt-up concrete structure and structural steel racking mezzanine
- Electrical, fire protection, and HVAC systems

3.2 Site Conditions

- Site access limited to a single entry point shared with an active neighboring facility
- Geotechnical survey indicates variable fill material to 3m depth, further investigation recommended

3.3 Timeline

- Engineering & Procurement: Months 1-3
- Structural works: Months 3-9
- Fit-out and commissioning: Months 10-15, schedule described by client as aggressive given the fill remediation uncertainty

4. EXPERIENCE REQUIREMENTS

- Minimum 8 years experience in design-build commercial construction
- Minimum 3 completed projects of similar scale
- Minimum annual turnover USD 20 Million for last 3 years
- ISO 9001 and ISO 14001 certifications required; local safety accreditation considered strict for regional bidders without an existing local presence
- Project Manager: Minimum 10 years design-build experience

5. CONTRACT TERMS AND CONDITIONS

5.1 Liability

- Contractor liability capped at 15% of contract value for direct damages
- No liability cap for gross negligence or IP infringement

5.2 Termination

- Client may terminate for convenience with 45 days notice
- Either party may terminate for material breach with 21 days notice if not cured
- Contractor has 7 days to submit cost impact of change orders, shorter than typical industry practice

5.3 Disputes

- Disputes subject to arbitration in a jurisdiction outside the contractor's home region

6. PERFORMANCE SECURITY AND INSURANCE

- Performance Bond: 10% of contract value
- Insurance Requirements: General Liability minimum USD 5 Million per occurrence

7. LIQUIDATED DAMAGES

- Schedule Delay Penalties: 0.5% of contract value per week of delay, capped at 7.5% total

8. EVALUATION CRITERIA

- Technical Capability: 40%
- Financial: 40%
- HSE & Compliance: 20%

DOCUMENT CLASSIFICATION: DESIGN-BUILD CONTRACT

EXPECTED SCENARIO PROFILE: MEDIUM risk / PROCEED_WITH_CAUTION